

24AVCV01720 24AVCV01720

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 24AVCV01720 Hearing Date: July 15, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

TYRESE J. PETTWAY,

Plaintiff,

v.

BANK OF AMERICA, NATIONAL ASSOCIATION,

Defendant.

Case Number 24AVCV01720

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 15, 2026

Dept. A-14

Judge William H. Forman

I. Background

Plaintiff's counsel moves to be relieved.

On December 30, 2024, Plaintiff Tyrese J. Pettway (Plaintiff) filed a motion against Bank of America, National Association (Defendant) and DOEs 1 through 50.

On April 2, 2025, Plaintiff filed his first amended complaint.

On August 26, 2025, the Court granted Defendant's demurrer with leave to amend all but one cause of action.

On December 1, 2025, Plaintiff's counsel Patricia Renee Rodriguez (Rodriguez) filed a motion to be relieved as counsel.

On March 3, 2026, Rodriguez's motion was called for hearing, and continued the hearing to April 6, 2026.

On April 6, 2026, Rodriguez's motion again came before the Court for hearing and was continued to June 8, 2026.

On April 9, 2026, the Court sent notice that the hearing on Rodriguez's motion to be relieved was continued to July 15, 2026.

On June 2, 2026, Plaintiff filed his second amended complaint (SAC), asserting causes of action against Defendant for (1) fraud, (2) conversion, (3) intentional infliction of emotional distress, (4) violation of the Electronic Funds Transfer Act, and (5) violation of the Americans with Disabilities Act.

Specifically, Plaintiff alleges that in January of 2022, Plaintiff opened a checking account with Defendant and added his father to the account. (SAC, ¶¶ 7.) Plaintiff received a large personal injury settlement and deposited the amount into the checking account. (SAC, ¶ 9.) Plaintiff alleges that almost immediately after deposit, Defendant permitted numerous unauthorized users to make large account payments to various entities. (FAC, ¶¶ 10.)

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel:

(1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil");

(2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).";

(3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order.";

(4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362 (a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Id. at 3.1362(d).)

"Current" means that "the address was confirmed within 30 days before the filing of the motion to be relieved." (Id.) "Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (Id.) "If the service is by mail, Code of Civil Procedure section 1011, subd. (b) applies." (Id.)

III. Discussion

Application – Plaintiff's counsel moves to be relieved as counsel.

Here, Rodriguez has satisfied the requirements of rule 3.1362. Rodriguez has directed the Notice of Motion and Motion to Be Relieved as Counsel to Plaintiff at his last known address. It is accompanied by a supporting declaration on form MC-052, in which Rodriguez states that Plaintiff and Rodriguez have encountered a conflict of interest, and despite numerous attempts by counsel were made to resolve the conflict, there has been no resolution. As such, Rodriguez states she must withdraw as counsel of record.

A proposed order using form MC-053 has been filed with the Court which specified the next hearing date scheduled in the action, and a proof of service of all moving papers has been filed, stating Plaintiff was served via overnight delivery. Rodriguez's declaration states that she has served Plaintiff's last known address and has been able to confirm Plaintiff's address within the 30 days prior to filing through court records and communication with Plaintiff. No additional service is required as no other parties or individuals have appeared in the case. However, Rodriguez also served counsel for Defendant.

The Court finds that good cause exists to relieve Rodriguez and her law firm, Rodriguez Law Group, Inc. from representation of Plaintiff Tyrese J. Pettway. As no Opposition has been filed, no responsive documents have been filed on behalf of Defendants as to the SAC, the only hearings set are a Case Management Conference, OSC re dismissal for Plaintiff's failure to file an amended complaint, and the hearing on the present motion to be relieved, and no trial date has been set, Rodriguez's relief will not cause prejudice to any party.

Accordingly, Attorney Patricia Rodriguez's Motion to be Relieved as Counsel for Plaintiff Tyrese J. Pettway is GRANTED.

IV. Conclusion

Counsel Patricia Rodriguez's Motion to Be Relieved as Counsel is GRANTED.